

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: September 25, 2023, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
1.	Jimenez Gonzalez v. Santa Ana Unified School District	The unopposed motion of defendant Santa Ana Unified School District (Defendant) to compel the deposition of non-party Dr. Homa Shoghian (Shoghian) is DENIED WITHOUT PREJUDICE. The motion and supporting declaration were filed on July 26, 2023. (ROA ##225, 226.) Defendant, however, failed to file a proof of service with either the motion or declaration, and therefore there is no evidence showing timely service of the motion and supporting documents on plaintiffs or Shoghian. Paragraph 12 of the declaration of attorney Chaidez states the motion was personally served on Shoghian, but that paragraph does not satisfy the requirements for a valid proof of service. Although a proof of service does not have to be filed with the motion, it must be filed at least five-court days prior to the hearing. (Cal. Rules of Ct., rule 3.1300(c).) There is no proof of service in the court's file showing timely service of the motion. The court notes Defendant filed two ex parte applications to advance the hearing date for the motion (ROA ##211, 216), and there are proofs of service showing those documents were electronically served on Shoghian and plaintiffs (ROA ##209, 219). Electronic service of the ex parte applications, however, does not satisfy the requirement for service

		of the motion on Shoghian, let alone that the motion be personally served on the nonparty deponent, Shoghian (Cal. Rules of Ct., rule 3.1346). The court granted the second ex parte application and advanced the hearing on the motion to September 25, 2023, but there is no proof of service or other indication Shoghian was given any notice of the advanced hearing date even assuming he was served with the motion itself. (Civ. Proc. Code § 1010; CRC Rule 3.1110.) Finally, the notice of motion states the hearing on the motion will be conducted at the North Justice Center, not the Central Justice Center. Based on the lack of proper notice, the Motion is DENIED WITHOUT PREJUDICE. Defendant to give notice.
2.	Allied Modular Building Systems, Inc. v. Arundel Christian School, Inc.	OFF CALENDAR – notice withdrawing motion filed by moving party
3.	Cordova v. Kittyhawk Monarch LLC	Defendant Insurance Company of the West (Defendant) seeks an order sustaining its demurrer to the fifth cause of action for declaratory relief alleged in the complaint of plaintiffs Anthony Felix Cordova, etc. and Adrian Art Cordova, etc. (collectively, Plaintiffs). Defendant contends the declaratory relief cause of action is barred by the workers' compensation exclusive remedy provisions set forth in Labor Code sections 3602 and 3864 because the Labor Code defines "employer" to include the employer's workers' compensation carrier. As such, Defendant contends civil claims against workers' compensation insurers are generally barred by the Workers' Compensation Act. Labor Code section 3602(a) states: "Where the conditions of compensation set forth in Section 3600 concur, the right to recover compensation is, except as specifically provided in this section and Sections 3706 and 4558, the sole and exclusive remedy of the employee or his or her dependents against the employer. The fact that either the employee or the employer also occupied another or dual capacity prior to, or at the time of, the employee's industrial injury shall not permit the employee or his or her

		dependents to bring an action at law for damages against the employer.” Labor Code section 3864 states: “If an action as provided in this chapter prosecuted by the employee, the employer, or both jointly against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement so to do executed prior to the injury.” “The Workers' Compensation Act (Act), codified in section 3201 et seq. of the Labor Code, sets forth an elaborate scheme for the compensation of California employees injured in the course and scope of their employment. Labor Code section 3602 expressly states that the right to recover workers' compensation benefits is ‘the sole and exclusive remedy’ available to an injured employee against his employer . . . ‘Additionally, an employee may not sue his employer's insurance carrier . . . because the Act defines ‘employer’ to include ‘insurer.’” (§ 3850, subd. (b).)” (<i>Marsh & McLenna, Inc. v. Superior Court</i> (1989) 49 Cal.3d 1, 5-6.) “The Workers' Compensation Act invests the WCAB with exclusive jurisdiction over disputes regarding an employee's right to compensation or an employer's liability. [Citations omitted.] This exclusive jurisdiction extends to claims against the employer's workers' compensation insurer. (Lab. Code, § 3850, subd. (b); <i>Marsh & McLennan, Inc., supra</i>, 49 Cal.3d at p. 6.)” (<i>Mitchell v. Scott Wetzel Servs., Inc.</i> (1991) 227 Cal.App.3d 1474, 1478.) Here, Plaintiffs filed their action against their decedent’s employers alleging causes of action for general negligence and wrongful death, premises liability and wrongful death, negligent undertaking and wrongful death, and a survival action. Plaintiffs also allege a declaratory relief cause of action against Defendant wherein they allege Defendant “is the worker’s compensation carrier providing benefits to Plaintiff in connection with the damages and fatal injuries sustained by Decedent”; Defendant “contends that it has a right of subrogation recovery due to [Defendant] arising from any third party recovery by Plaintiffs and/or on behalf of Decedent”; the “parties
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	have a disagreement as to the amount of said recovery by [Defendant] and therefore a dispute of fact has arisen that requires Judicial Intervention so that Plaintiffs may obtain a formal order declaring the recovery due to [Defendant], if any, as Plaintiffs contend that [Defendant] is not entitled to any recovery or a reduced recovery due to, among other reasons, the doctrines of common fund and/or employer fault.” (See Complaint, ¶¶ 59-61.) As such, it appears Plaintiffs’ claim against Defendant is barred pursuant to the Workers’ Compensation Act. In opposition, Plaintiffs contend the exclusivity rule does not apply because Plaintiffs are not seeking damages from Defendant; rather, they merely are seeking adjudication of the proper amount of recovery from Defendant on its subrogation claim. Plaintiffs contend the cases relied upon by Defendant involved direct claims against the plaintiff employer for indemnity and contribution which is not what Plaintiffs are seeking in their declaratory relief. Plaintiffs simply want to know their responsibility, if any, to reimburse Defendant for the benefits provided. None of the cases cited by Defendant are directly on point as the cases do not involve a declaratory relief claim asserted by the plaintiff employee (or his successor in interest) against the employer’s workers’ compensation insurance carrier. In <i>C.J.L. Construction, Inc. v. Universal Plumbing</i> (1993) 18 Cal.App.4th 376 (<i>CJL</i>), however, the court recognizes in third-party actions, Labor Code section 3864 “has been construed to prohibit the third party tortfeasor from suing the employer . . . for declaratory relief.” (<i>Id.</i> at p. 385.) In <i>C.J.L.</i>, the plaintiff employee sued his employer and two third parties for injuries he sustained while using a ladder which he alleged had been defectively designed or manufactured. In its Answer, one of the defendants (not the employer) alleged as an affirmative defense that the injuries or damages, if any, suffered by plaintiff were proximately caused by the other defendants and it was necessary to reduce any judgment by the degree of contributory negligence of the other defendants. This same defendant also filed a cross-complaint against the employer for indemnification and contribution alleging it was entitled to an offset in the amount of the workers’ compensation benefits paid by the insurance company
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		insurer to the injured plaintiff. (<i>CJL, supra</i>, 18 Cal.App.4th at p. 381.) The issue in <i>C.J.L.</i> was “whether a third party defendant which, pursuant to <i>Witt v. Jackson</i> (1961) 57 Cal.2d 57, 72 . . . seeks to reduce any judgment against it by the amount of workers' compensation benefits paid to an injured employee, may compel the employer's participation as a cross-defendant in the employee's lawsuit. The right to a <i>Witt v. Jackson</i> offset arises when the employee's injuries were caused by the concurrent negligence of the employer or its agent and the third party.” (<i>CJL, supra</i>, 18 Cal.App.4th at p. 380.) The <i>C.J.L.</i> court addressed the issue of “the use of the declaratory relief procedure to determine the amount of the <i>Witt v. Jackson</i> Offset.” (<i>C.J.L., supra</i>, 18 Cal.App.4th at p. 389.) The <i>C.J.L.</i> court concluded an employer may not be compelled to participate in the plaintiff employee’s lawsuit as a cross-defendant based upon the facts alleged in the amended cross-complaint as a matter of law. (<i>CJL, supra</i>, 18 Cal.App.4th at p. 387.) The court states as follows: “The issue raised in this case involves the use of the declaratory relief procedure to determine the amount of the <i>Witt v. Jackson</i> offset. Neither the <i>City of Sacramento</i> nor the <i>Del Monte Corp.</i> court considered the substantial decisional and statutory authority concerning unavailability of declaratory relief under certain circumstances. Code of Civil Procedure section 1060 provides parties with broad rights to secure a declaration of rights and obligations. In pertinent part, Code of Civil Procedure section 1060 provides: ‘Any person interested . . . who desires a declaration of his [or her] rights or duties with respect to another, . . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, . . . file a cross-complaint in a pending action in the superior, municipal or justice court for a declaration of [her or] his rights and duties. . . . He [or she] may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding
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		declaration of such rights or duties, . . .’ However, Code of Civil Procedure section 1061 provides an exception to the broad language in Code of Civil Procedure section 1060 as follows, ‘The court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.’ The California Supreme Court has held: ‘The discretion to be exercised pursuant to section 1061 is not unlimited. It is a legal or judicial discretion subject to appellate review, and declaratory relief must be granted when the facts justifying that course are sufficiently alleged. [Citation.] Refusal is limited to cases where a declaration of rights and obligations would be unnecessary or improper at the time under all the circumstances. The determination rests on the facts in each case.’ (<i>Kessloff v. Pearson</i> (1951) 37 Cal.2d 609, 613 [233 P.2d 899].) “Appellate courts have identified various situations where trial judges have not abused their discretion in determining that declaratory relief is unavailable as a remedy for a litigant. For example, declaratory relief may be an improper remedy where evidence in the trial of the main action would be substantially the same as that presented in connection with a cross-complaint. [Citations.] On appeal, courts have held that if a plaintiff or cross-complainant has other means of seeking a determination of their rights, then a trial judge may sustain a general demurrer to a declaratory relief claim. . . . Further, when a matter can be raised as an affirmative defense, courts have held that a trial judge may prevent the filing of a declaratory relief action by the defendant. [Citations.] “We respectfully disagree with the conclusions set forth in <i>City of Sacramento</i> and <i>Del Monte Corp.</i> and the dicta in other Court of Appeal decisions insofar as they support the conclusion that in this case CJL could utilize the first amended cross-complaint to litigate the amount of the <i>Witt v. Jackson</i> offset. To begin with, at the time the first amended cross-complaint was filed, neither UP nor its
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		compensation carrier had filed a complaint in intervention in an effort to assert their lien rights. No facts were alleged in the first amended cross-complaint which indicated any effort would be made to file a complaint in intervention. Further, all of the third party defendants, including CJL, could pursuant to <i>DaFonte v. Up-Right, Inc., supra</i>, 2 Cal.4th at page 604, footnote 6, and <i>Associated Construction & Engineering Co. v. Workers' Comp. Appeals Bd., supra</i>, 22 Cal.3d at page 842, raise the issue by way of an affirmative defense as CJL has in its answer. As noted previously, when an issue can be raised by means of an affirmative defense, a trial judge may therefore dismiss a declaratory relief claim raising the same questions in the cross-complaint. (<i>Welfare Investment Co. v. Stowell, supra</i>, 132 Cal.App. at pp. 276-278.) Also, the purposes of the Workers' Compensation Law would be contravened by permitting a third party to require the employer to undergo the expense of undertaking participation in a civil suit without its consent. As noted previously, a purpose of the law under these circumstances is to "insulate the employer from tort liability for . . . employees' injuries." (<i>Privette v. Superior Court, supra</i>, 5 Cal.4th at p. 697.) Given the purposes of the workers' compensation law, when combined with the fact that declaratory relief by means of a cross-complaint may be denied when the same issue is raised by an affirmative defense, we conclude that absent something more than the allegations in the amended cross-complaint in this case, such a claim may not be pursued where the employer has not intervened in the civil suit." (<i>CJL, supra</i>, 18 Cal.App.4th at pp. 391-92.) Here, Defendant has not yet pursued subrogation and has not sought to intervene in a third-party case or file a first notice of lien in this action. As such, Plaintiffs' declaratory relief cause of action is premature. And, even if Defendant were to pursue subrogation by way of a complaint-in-intervention, Plaintiffs' position as alleged in the declaratory relief cause of action that Defendant is not entitled to any recovery or a reduced
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		recovery due to employer fault can be alleged as an affirmative defense. Further, "[i]n adjudicating whether a claim falls within the workers' compensation system, all doubt should be resolved in favor of finding jurisdiction within the workers' compensation system. [Citations omitted.] 'Where there is any reasonable doubt as to the jurisdiction, the courts must resolve such doubts in favor of jurisdiction'".) Accordingly, a close case should be held to fall within the system." (<i>Mitchell, supra</i>, 227 Cal.App.3d at p. 1480.) Based on the foregoing, Defendant's demurrer to the fifth cause of action for declaratory relief is SUSTAINED WITHOUT LEAVE TO AMEND. Citing the liberal policy in favor of granting leave to amend, Plaintiffs contend they should be granted such leave/ Plaintiffs, however, fail to explain how they can amend the complaint to pleading around the exclusivity of the Workers' Compensation System based on the facts they already have alleged. The court will entertain argument at the time of the hearing, but will require a specific proffer as to how a claim can be stated. Defendant's counsel is ordered to give notice of this ruling.
4.	Bates v. Beidl	The unopposed motion of defendant Allianz Life Insurance Company of North America (Allianz) to bifurcate trial as to the punitive claim is GRANTED. The Court has the power to bifurcate trial pursuant to Code of Civil Procedure sections 598 and 1048(b). Under Civil Code section 3295(d), the court is required to bifurcate punitive damages from liability and to preclude evidence of a defendant's profits or financial condition until after the issue of liability and a finding of malice, oppression, or fraud have been determined. As such, the motion is proper and must be granted. The court hereby orders trial bifurcated into two phases. Phase One will concern the presentation of evidence and the jury's deliberation on the issue of liability, the amount of actual and/or compensatory damages awardable to plaintiff, if any, and the determination as to whether any defendant committed "oppression, fraud, or malice." During this phase, evidence and testimony regarding Allianz's profits or financial condition will not be

		admissible. Parties and their counsel shall refrain from referring to or mentioning Allianz's profits or financial condition, as well as making any reference to punitive damages. If there is a finding of liability and oppression, fraud, or malice on the part of Allianz in Phase One, the trial will then proceed to Phase Two for the jury to consider evidence addressing Allianz's financial condition and profits. The jury will deliberate on the amount of punitive damages awardable to plaintiff from Allianz, if any. Allianz to give notice.
5.	Litrinium, Inc. v. Adas	On calendar is the motion of plaintiff Litrinium, Inc. (Plaintiff) to compel further responses to special interrogatories, set two, interrogatory nos. 57 and 59. The motion was filed on March 20, 2023, but, on December 8, 2022, the prior judicial officer assigned to this case appointed a discovery referee to hear all discovery disputes in this matter. On April 10, 2023, the court signed the order appointing Honorable Robert J. Moss (Ret.) as discovery referee to hear all discovery disputes in this matter. The current discovery motion therefore is not properly before the court, but rather must be submitted to the discovery referee. Based on the foregoing, the court orders the motion OFF CALENDAR without prejudice to the motion being submitted to the discovery referee. Plaintiff's counsel is ordered to give notice.
6.	Global Asset Recovery Management LLC v. Residents Medical Group, Inc.	On calendar is the unopposed motion of defendant Residents Medical Group, Inc. (Defendant) to transfer venue to Superior Court of Los Angeles County, Santa Monica Branch. As more fully set forth below, the motion is GRANTED. (Code Civ. Proc., §§ 396b, subd. (a); 397, subd. (a); 395.5.) Plaintiff Global Asset Recovery Management LLC (Plaintiff) alleges Orange County is the proper court because "a defendant entered into the contract here" and "the contract was to be performed here." (Complaint, ¶7.) The evidence, however, shows the contract was made and was to be performed in Los Angeles, the breach occurred in Los Angeles, and the principal place of business of Defendant is in Los Angeles. (Complaint, Exhibits A-B; Everest Decl., ¶12; see also, Code Civ. Proc., §395.5.) Thus,

		although the contract contains a venue provision providing for exclusive venue in Orange County, this provision is void because it fixes venue in a location other than that allowed by statute and thus it “disrupts statutory venue provisions.” (<i>Battaglia Enterprises, Inc. v. Superior Court</i> (2013) 215 Cal.App.4th 309, 317; <i>Alexander v. Superior Court</i> (2003) 114 Cal.App.4th 723, 731.) Plaintiff did not file an opposition and thus does not dispute the foregoing. Based on the above, the motion is GRANTED and Plaintiff is ordered to pay all fees associated with transferring this case to Superior Court of Los Angeles County, Santa Monica Branch. Defendant’s request for judicial notice is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code §452(d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Defendant’s request for sanctions is DENIED. (Code of Civ. Proc., §396b, subd. (b).) Correspondence attached to the motion reflects Plaintiff agreed to transfer the case to Santa Monica court. (See Exhibit 2 to Motion.) Moreover, with respect to the prior lawsuit, Plaintiff’s counsel did not file that complaint or dismissal (she substituted in after the case was dismissed) and there was no ruling made in the prior action that venue was improper. Therefore, Defendant has not shown sanctions are warranted here. Counsel for Defendant is to give notice of this ruling.
7.	Technicote v. Action Packaging & Design, Inc.	The unopposed motion of plaintiff Technicote (Plaintiff) for an order enforcing the settlement and entering judgment against defendant Action Packaging & Design, Inc. (Defendant) is GRANTED. Code of Civil Procedure section 664.6 provides, “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court

	may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” Here, Plaintiff submits evidence the parties entered into a valid and binding settlement which was placed on the record in open court with a court reporter present. A copy of the reporter’s transcript is an exhibit to the motion. The settlement’s terms were clearly stated on the record, and the attorneys and clients acknowledged their understanding the terms stated reflected the agreement of the parties. The settlement agreement called for a series of payments to be made and Plaintiff submits evidence showing Defendant breached the terms of the agreement by not making all the scheduled payments. Plaintiff has submitted a payment history showing total payments made in the amount of \$13,250. Plaintiff also submits evidence showing a notice of default and opportunity to cure has been given to Defendant, but the required payments have not been made. In the event of default, the settlement has a \$30,700 liquidated damages provision. This provision allows Plaintiff to seek entry of a judgment in the amount of \$130,500 less any amounts paid. The stated purpose of this additional amount is to provide for three years of prejudgment interest. Defendant has not challenged the liquidated damages provision. Civil Code section 1671(b) states, “Except as provided in subdivision (c), a provision in a contract liquidating the damages for the breach of the contract is valid unless the party seeking to invalidate the provision establishes that the provision was unreasonable under the circumstances existing at the time the contract was made.” (See also <i>Vitatech Internat., Inc. v. Sporn</i> (2017) 16 Cal.App.5th 796, 806.) Accordingly, the court GRANTS the motion and will enter judgment against Defendant and in favor of Plaintiff in the amount of \$117,250.00, which is calculated as follows: \$130,500.00 (agreed to default amount) minus \$13,250.00 (payments made). Plaintiff to submit a proposed judgment to the court consistent with this ruling. Counsel for Plaintiff is ordered to give notice of this ruling.
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8.	Jacome v. Barnett	On calendar is the motion by defendant Case C. Barnett (Defendant) to stay this action pending resolution of the relate case entitled <i>Jacklyn Marie Jacome, etc. v. Kevin Ullrich, et al.</i>, Orange County Superior Court Case No. 30-2022-01259355. The motion contends a stay of this legal malpractice matter is in the interest of justice because the issues of liability, causation, and damages in this case will be impacted by the resolution of the related case. Plaintiff Jacklyn Marie Jacome, a dependent adult, by and through her guardian ad litem, Mary Jane Ramirez, filed a notice stating she does not oppose the motion to stay this action pending resolution of the related case. Based on the foregoing and the governing law, the court finds a stay is appropriate and therefore GRANTS the motion. (See <i>Beal Bank, SSB v. Arter & Hadden, LLP</i> (2007) 42 Cal.4th 503, 513-514; <i>Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal.4th 739, 758; <i>Adams v. Paul</i> (1995) 11 Cal.4th 583, 592-593; <i>Sindell v. Gibson, Dunn & Crutcher</i> (1997) 54 Cal.App.4th 1457, 1473, n. 11; <i>Rosenthal v. Wilner</i> (1988) 197 Cal.App.3d 1327, 1331.) The court hereby stays this action pending resolution of the related case, which is currently set for trial on October 23, 2023. The court sets a status conference in this case for December 8, 2023, at 9:30 a.m., in Department C23. Defendant's counsel is ordered to give notice.
9.	Le v. Nguyen	Before the court are the following motions filed by defendant Lieu Thi Nguyen (Defendant) directed to plaintiff Warren Le (Plaintiff): (1) motion to compel deposition and request for monetary sanctions; (2) motion to compel responses to request for production of documents, set one, and request for monetary sanctions; and (3) motion to compel responses to form interrogatories, set one, and request for monetary sanctions. As more fully set forth below, the motions are DENIED WITHOUT PREJUDICE. <u>Motion No. 1: Compel Deposition</u> "The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action or an officer,

director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (Code Civ. Proc., § 2025.280(a).)

Here, Defendant contends Plaintiff has refused to appear for his deposition. Defendant allegedly served a deposition notice on Plaintiff’s counsel by email on January 19, 2023. The motion, however, does not include a copy of the deposition notice or any proof of service showing the notice of deposition was served on Plaintiff’s counsel. The statements in counsel’s declaration and the email from counsel’s legal secretary to Plaintiff’s counsel purporting to attach the deposition notice are not a proper or adequate proof of service. (See Code Civ. Proc., § 1013b.) Thus, the court is unable to determine if the deposition notice was properly served such that the notice would be effective to require Plaintiff to attend the deposition.

In addition, there is no indication in the moving papers that Defendant’s counsel contacted Plaintiff after the deposition to inquire about the nonappearance as required by Code of Civil Procedure section 2025.450(b)(2).

Based on the foregoing, the motion is **DENIED WITHOUT PREJUDICE.**

**Motion Nos. 2 and 3: Compel Answers to
Request for Production and Form
Interrogatories**

A propounding party may seek a court order compelling answers if the party to whom the interrogatories or requests for production are directed fails to respond. (Code Civ. Proc., §§ 2030.290(b) [interrogatories]; 2031.300(b) [request for production].)

Here, Defendant contends Form Interrogatories, Set One, and Requests for Production of Documents, Set One, were propounded on Plaintiff via email on January 19, 2023, and to date, no responses have been received. The motions, however, fail to include copies of the subject discovery requests or proofs of service showing the requests were served on Plaintiff. As with the motion to compel deposition, the statements in counsel’s declaration

		and the email from counsel's legal secretary to Plaintiff's counsel purporting to attach the discovery requests are not a proper or adequate proof of service. (See Code Civ. Proc., § 1013b.) Thus, the court is unable to determine if the discovery requests were properly served. Based on the foregoing, the motions are DENIED WITHOUT PREJUDICE. Counsel for Defendant is to give notice.
10.	Hernandez v. Xiem Tools, USA, LLC	OFF CALENDAR – notice withdrawing motions filed by moving party
11.	MOM CA Investco LLC v. Honarkar	On calendar are the following two motions: (1) motion by defendant Mohammad Honarkar (Honarkar) to compel arbitration of the claims, other than for injunctive relief, alleged in the First Amended Complaint (FAC) of plaintiffs MOM CA Investco LLC, MOM AS Investco LLC, MOM BS Investco LLC, MOM CA Investor Group LLC, MOM AS Investor Group LLC, and MOM BS Investor Group LLC (collectively, MOM Entities), and Michael Kluchin (Kluchin) [Kluchin and MOM Entities shall be collectively referred to as Plaintiffs) and to stay the court proceedings, and (2) motion of plaintiffs MOM CA Investco LLC and MOM CA Investor Group LLC to quash the business records subpoena Honarkar served on third party Nano Banc. <u>Motion No. 1: Compel Arbitration and Stay Court Proceedings</u> As more fully explained below, the motion is GRANTED. A petition to compel arbitration must allege both (1) a "written agreement to arbitrate" the controversy, and (2) that a party to that agreement "refuses to arbitrate" the controversy. (Code Civ. Proc., § 1281.2.) The court shall grant the petition unless the petitioner waived the right to compel arbitration, or other grounds exist for rescission of the agreement. (<i>Ibid.</i>) "Normally, the court decides the scope and validity of an arbitration agreement, including whether it is unconscionable. [Citation.] When the parties 'clearly and unmistakably' delegate issues of arbitrability to the arbitrator, [however,] the arbitrator, not the court, decides such issues as the

scope of the arbitration agreement.” (*Chin v. Advanced Fresh Concepts Franchise Corp.* (2011) 194 Cal.App.4th 704, 709; *Rodriguez v. Am. Techs., Inc.* (2006) 136 Cal. App. 4th 1110, 1123 [“Although the scope of an arbitration clause is generally a question for judicial determination, the parties may, by clear and unmistakable agreement, elect to have the arbitrator, rather than the court, decide which grievances are arbitrable”].)

California courts of appeal have held a court may decline to enforce an agreement delegating questions of arbitrability to an arbitrator if it concludes the claim of arbitrability is “wholly groundless.” (See *Dream Theater, Inc. v. Dream Theater* (2004) 124 Cal.App.4th 547, 553 [“unless a claim of arbitrability is wholly groundless, the court should stay proceedings pending the arbitrator’s determination of his or her own jurisdiction”]; *Smythe v. Uber Technologies, Inc.* (2018) 24 Cal.App.5th 327, 332-333.) The U.S. Supreme Court abrogated the legal principle underlying these decisions by holding, when a court is required by a valid delegation clause to refer disputes about arbitrability to an arbitrator, it has no power to decide such issues even if it believes the motion for arbitration is “wholly groundless.” (*Henry Schein, Inc. v. Archer & White Sales, Inc.* (2019) 139 S.Ct. 524, 528.) Based on this authority, it is unclear whether California courts will continue to apply the “wholly groundless” exception to an otherwise valid delegation clause.

Here, the agreement to arbitrate is found in the three Operating Agreements attached to Honarkar’s declaration. The agreements have the same arbitration provision and include a delegation clause. Specifically, the agreements state, “Any dispute, controversy or claim arising out of or relating to this Agreement (other than claims for injunctive or equitable relief), including, but not limited to, the interpretation, breach or termination thereof (**including whether the claims asserted are arbitrable**), shall be referred to and finally determined by arbitration in accordance with the expedited arbitration rules of Judicial Arbitration and Mediation Services, Inc. (“JAMS”) or such other rules as the parties may agree upon.” (Honarkar Dec., Exhs. A, B, C at ¶ 19.10., emphasis added;

		see also Asset Contribution Agreement, Honarkar Dec., Exh. D at ¶ 6(g)(ii).) In opposition to the motion, Plaintiffs argue arbitration should be denied because (1) Kluchin’s assault and battery claims are not subject to arbitration because he is not a party to the Operating Agreements and his claims do not relate to or arise from the Operating Agreements; (2) Honarkar waived any right to compel arbitration by availing himself of the benefit of discovery in the judicial forum; and (3) the claims in the related case should be consolidated with the claims in this case and tried in court. There also is a dispute as to whether Plaintiffs’ declaratory relief claim should be ordered to arbitration. (The parties agree the injunctive relief claims should not be sent to arbitration under the terms of the arbitration agreement.) The issue Plaintiffs fail to address, however, is who should decide these issues challenging the enforceability and scope of the arbitration provision. Indeed, the motion specifically raises the delegation provision and argues it is for the arbitrator to decide the enforceability of the arbitration agreement and its scope. Plaintiffs do not dispute the existence of the delegation clause or its applicability to the challenges Plaintiffs raise. Likewise, Plaintiff do not raise the “wholly groundless” exception to delegation to the extent that exception remains viable. As more fully explained below, the court concludes the delegation clause requires all issues Plaintiffs raise in opposition to the motion to compel arbitration to be submitted to the arbitrator for final determination. Kluchin argues his claims for assault and battery are “completely unrelated to the Operating Agreements” and therefore cannot be ordered to arbitration because he was not a signatory to the Operating Agreements and his position as an employee of Continuum Analytics, Inc. does not make him subject to the arbitration provision. The two causes of action alleged by Kluchin arise out of the incident that took place on May 2, 2023, at Hotel Laguna and Laguna Holiday Inn. Kluchin alleges Honarkar threatened him as he was attempting to enter the property and then made harmful contact with him to remove him from the
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	property. (FAC at ¶¶84 and 88.) Kluchin asserts he was rightfully on the premises because the MOM Entities had rightful possession. (FAC at ¶40.) Honarkar disputes this claim and contends resolution of the right to possession issues, and Honarkar's right to eject Kluchin, likely will involve resolution of the ownership/management issues that are the subject of dispute between the MOM Entities and Honarkar. Honarkar also argues Kluchin was acting as the MOM Entities agent and within the scope of that agency. Whether Kluchin's claims are covered by the arbitration agreement is an issue for the arbitrator to decide pursuant to the delegation provision. Indeed, delegation provisions delegate to the arbitrator all issues regarding the scope of the arbitration, including who is subject to arbitration. To the extent the "wholly groundless" exception remains viable, there exists a colorable, good faith argument Kluchin's role with the MOM Entities subjects the claims he alleges to arbitration. The court does not express any opinion regarding that ultimate issue, but rather, simply concludes that issue should be decided by the arbitrator pursuant to the delegation provision. Moreover, assuming arguendo Kluchin's claims are not subject to the delegation provision, the court nonetheless determines it would be appropriate to stay his claims pending the outcome of the arbitration between Honarkar and the MOM Entities because there is a possibility of conflicting rulings on a common issue of law or fact. Code of Civil Procedure section 1281.2(d) provides in pertinent part as follows: "If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c) herein, the court . . . (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding." Plaintiffs argue the arbitration agreement should not be enforced because Honarkar waived his right to arbitration. This is another issue that must be submitted to the arbitrator pursuant to the
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		delegation provision and Plaintiffs failed to provide any argument to the contrary. Nonetheless, assuming arguendo the waiver issue should be decided by the court, the court finds there has been no waiver. The leading case on whether the right to arbitrate has been waived is <i>Saint Agnes Medical Center. v. PacifiCare of California</i> (2003) 31 Cal.4th 1187 (<i>Saint Agnes</i>). “The law favors arbitration, and waiver will not be ‘lightly inferred.’ The party claiming the other waived the right to arbitrate ‘bears a heavy burden of proof.’” (<i>Saint Agnes, supra</i>, 31 Cal.4th at p. 1195.) While there is no single test for establishing waiver, the relevant factors include: (1) “whether the party's actions are inconsistent with the right to arbitrate”; (2) “whether the litigation machinery has been substantially invoked and the parties were well into preparation of a lawsuit before the party notified the opposing party of an intent to arbitrate”; (3) “whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay”; (4) “whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings”; (5) “whether important intervening steps (e.g., taking advantage of judicial discovery procedures not available in arbitration) had taken place”; and (6) “whether the delay affected, misled, or prejudiced the opposing party.” (<i>Saint Agnes, supra</i>, 31 Cal.4th at p. 1196.) “No one of these factors predominates and each case must be examined in context.’ . . . The question of prejudice, however, ‘is critical in waiver determinations.’” (<i>Quach v. California Commerce Club, Inc.</i> (2022) 78 Cal.App.5th 470, 477–478.) There has been little to no delay in this action other than that arising from the impacted nature of the court’s calendar. Honarkar filed this motion six weeks after the Plaintiff filed the complaint. The only reason Honarkar delayed that long is that Honarkar opened an arbitration proceeding before Plaintiff even filed this case and Plaintiff’s were cooperating and proceeding with the arbitration up until May 30, 2023. Once Plaintiffs changed their mind and communicated they no longer were willing to participate in arbitration Honarkar filed this
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	motion within 2 weeks. As such, the court does not find any delay on Honarkar's part. Similarly, this motion is not made close to the trial date in that it was filed shortly after the case was commenced and no trial date has been set. Plaintiffs' primary argument is Honarkar invoked the litigation machinery by engaging in discovery such that he has waived his right to arbitrate. (Opp. at 13:21.) Based on a review of the history of this litigation, however, the court finds the discovery was related to the injunctive relief claims. The MOM entities attach written discovery served by Honarkar on May 8, 2023, which they assert constitutes 450 discovery requests. The discovery is form interrogatories and requests for production to Kluchin and form interrogatories, requests for admissions, and document requests to two of the MOM Entities, for a total of eight sets of discovery. It is not surprising Honarkar propounded discovery because one of the central issues in this case has been the right of the parties to injunctive relief. The MOM entities have twice filed motions for preliminary injunction and Honarkar has filed his own motion for a preliminary injunction. (And, of course, there were multiple ex parte hearings on requests for temporary restraining orders.) One of the issues central to obtaining a preliminary injunction is establishing a likelihood of success on the merits. (<i>Smith v. Adventist Health Sys./W.</i> (2010) 182 Cal.App.4th 729, 749.) In the extensive briefs Honarkar submitted on the injunctive relief issues there has been the repeated argument the MOM Entities cannot establish a likelihood of success on the merits. For example, Honarkar has argued the MOM Entities cannot sue to enforce the contracts because they did not perform their obligations under the contracts. As an additional example, Honarkar repeatedly has argued the MOM Entities are liable for fraud in the inducement. Further, Honarkar's discovery was in response to the MOM Entities' actions. For example, the MOM Entities sought injunctive relief immediately upon filing the complaint and then sought a second order further enjoining Honarkar. To respond to these claims, it would be natural to expect Honarkar to
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	conduct discovery. This discovery would not only include written discovery to the parties but would also include the subpoena to Nano Bank which Honarkar issued. This discovery naturally overlaps with other causes of action. Plaintiffs also point to Honarkar taking Kluchin's deposition. This too is not surprising because in the FAC the Plaintiffs state Kluchin was an agent for the MOM Entities (FAC at ¶20), he submitted declarations in support of the requests for injunctive relief, and he appears to have had knowledge of facts regarding the "likelihood of success on the merits" issue. Plaintiffs further argue Honarkar filing eight motions to quash constitutes invoking the litigation machinery. The subpoenas Honarkar seeks to quash, however, are allegedly seeking improper information in which Honarkar has an interest. The fact Honarkar has a pending motion to compel arbitration does not mean that he cannot take necessary actions to prevent improper disclosure of information. Finally, Plaintiffs fail to acknowledge the arbitration agreement between the parties specifically allows discovery: "Discovery in accordance with California law shall be permitted." The only prejudice Plaintiffs assert as justification for finding a waiver is the money expended conducting discovery. Given the substantial property and assets involved in this litigation, and the numerous motions filed related to attempts to obtain injunctive relief, the amount of money spent on the discovery appears quite small. Nonetheless, as the discovery was related to injunctive relief issues raised by plaintiffs, and it was authorized by the arbitration agreement, there is no prejudice to Plaintiffs in having to respond to discovery relating thereto. Accordingly, the court concludes, based on the <i>Saint Agnes</i> factors, and applicable case law, as well as the parties' briefs, Honarkar has not acted inconsistently with its right to compel arbitration and there has been no prejudice to Plaintiffs. No waiver occurred.
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		As for Plaintiffs’ suggestion the court should consolidate all claims in this case with the claims asserted in the related case. That request may not properly be asserted in an opposition brief, and Plaintiffs fail to cite any authority supporting the denial of this motion based on that request. Finally, as to the parties’ dispute regarding whether Plaintiffs’ declaratory relief claim should be submitted to arbitration, that is another question that is clearly for the arbitrator to decide pursuant to the delegation provision. Based on the foregoing, the motion is GRANTED and the parties are ordered to submit all claims (except for the injunctive relief claims) to arbitration for the arbitrator to determine which issues must be decided by arbitration, and then for the arbitrator to decide those issues. The case is hereby STAYED pending resolution of the arbitration (and that stay extends to Kluchin’s claims to the extent they are not subject to arbitration as stated above). <u>Motion No. 2: Quash Subpoena</u> Based on the above ruling, the hearings on the motion to quash the Nano Bank subpoena, as well as the eight motions to quash filed by Defendant, are vacated and the parties are directed to schedule the hearing with the Arbitrator pursuant to the Arbitrator’s rules and procedures. Honarkar’s counsel is ordered to give notice of this ruling.
12.	D.G. v. Doe 1	The motion for summary judgment, or in the alternative summary adjudication, filed by defendants Orange County Social Services Agency and County of Orange (collectively, Defendants) is GRANTED. Initially, the court notes no one disputes plaintiff D.G. (Plaintiff) was the victim of repeated terrible wrongs at the hands of his foster (and later adoptive) parent, or that he has suffered greatly as a result of those wrongs. That, however, is not the issue before this court. Rather, the question this court faces is whether the law and the facts, as presented, support potentially imposing liability on Defendants for the injuries Plaintiff has suffered for much of his life—or more accurately whether there

	is a triable issue as to whether to impose such liability. (See <i>Margaret W. v. Kelley R.</i> (2006) 139 Cal.App.4th 141, 145 (<i>Margaret W.</i>)). As explained below, the court agrees with the challenges Defendants assert to Plaintiff's claim. Plaintiff's operative First Amended Complaint (FAC) alleges a single cause of action for negligence. As both Defendants are public entities, liability for negligence must be authorized by statute. (<i>Branch v. State of Cal. ex. rel. Department of Transportation</i> (1984) 159 Cal.App.3d 340, 343; Gov. Code § 815.) Plaintiff's FAC alleges three statutory bases for Defendants' liability—Government Code sections 815.2, 815.4, and 815.6—i.e., vicarious liability for the acts or omissions of their employee or independent contractor under sections 815.2 and 815.4, and liability for a mandatory duty imposed by an enactment designed to protect against the risk of this particular kind of injury under section 815.6. As to liability for negligence under Government Code section 815.6, Plaintiff fails to point to any enactment that applies in this case. None of the enactments cited in the FAC existed at the time of the alleged conduct, and the opposition does not argue this point at all. As such, no liability can be found against Defendants under Government Code section 815.6. The court GRANTS Defendants' request for judicial notice regarding the enactments Plaintiff alleges in the FAC. The opposition makes clear Plaintiff's claim against Defendants is based on the acts and omissions of its social workers, narrowing down the argument as to vicarious liability for Defendants' employees or independent contractors. Plaintiff disclaims any effort to hold Defendants liable for the actions of his foster parents. (Opp. at p. 9, fn. 1.) To prevail in a negligence action, a plaintiff must show the defendant owed a legal duty to the plaintiff, the defendant breached that duty, and the breach proximately caused injury to the plaintiff. (<i>Wiener v. Southcoast Childcare Centers, Inc.</i> (2004) 32 Cal.4th 1138, 1145.) A defendant does not owe a legal duty to protect against third party criminal conduct unless a special relationship exists between the defendant and the plaintiff. (<i>Delgado</i>
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	<i>v. Trax Bar & Grill</i> (2005) 36 Cal.4th 224, 235; <i>Margaret W.</i>, <i>supra</i>, 139 Cal.App.4th at p. 152.) There is no dispute a special relationship existed between Plaintiff and Defendants because Plaintiff was in foster care with Defendants being responsible for him and his placement. "[E]ven when a defendant has formed a special relationship with a plaintiff, courts uniformly hold that the defendant has no duty to protect the plaintiff from unforeseeable third-party criminal conduct." (<i>J.L. v. Children's Institute, Inc.</i> (2009) 177 Cal.App.4th 388, 396 (<i>J.L.</i>); see <i>Margaret W.</i>, <i>supra</i>, 139 Cal.App.4th at p. 152.) Indeed, "despite that special relationship, the existence of a duty still requires that the harm be reasonably foreseeable, which requires that the defendant have actual knowledge of the assaultive propensities of the assailant. [Citation.] Defendants cannot be liable under a negligent supervision theory for nonfeasance based solely on constructive knowledge or information they should have known." (<i>Margaret W.</i>, at p. 153.) "What is apparent from all these cases analyzing defendants' liability for the criminal conduct of a third party is that foreseeability is the crucial factor [citation] and that—no matter whether a heightened or lesser degree of foreseeability was required and no matter whether the actual crime committed or only similar conduct needed to be foreseen—foreseeability must be measured by what the defendant actually knew. None of these cases has held that a defendant owed a duty to take steps to prevent or respond to third party crime on the basis of constructive knowledge or information the defendant should have known. We are not aware of any case involving liability for third party criminal conduct that has held that a special relationship creates a duty to investigate or that has charged a defendant with making forecasts based on the information such an investigation might have revealed." (<i>Margaret W.</i>, <i>supra</i>, 139 Cal.App.4th at p. 156.) Based on <i>Doe v. United States Youth Soccer Association</i> (2017) 8 Cal.App.5th 1118 (<i>Youth Soccer</i>), Plaintiff argues actual knowledge was not required to impose a duty, but the court finds <i>Youth Soccer</i> to be distinguishable and not controlling for
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	multiple reasons. First, <i>Youth Soccer</i> involved an appeal from a ruling sustaining a demurrer and the only duty it found was the duty to conduct background checks. (<i>Youth Soccer, supra</i>, 8 Cal.App.5th at pp. 1138-1139.) Here, the court is faced with a summary judgment/adjudication motion, and the evidence showed background and criminal checks were performed on Plaintiff's foster parents as they went through the licensing process to become foster parents. Next, the <i>Youth Soccer</i> court found a duty despite the lack of actual knowledge because the defendants were aware of incidents of physical and sexual abuse by coaches, and that their programs attracted pedophiles. The defendants had collected statistics regarding the prevalence of such conduct and developed the KidSafe Program acknowledging the risks. Moreover, the local defendants were aware on specific incidents by another individual in their organization the year before the perpetrator became involved. (<i>Youth Soccer, supra</i>, 8 Cal.App.5th at pp. 1132-1133.) There is no such evidence in this case. Indeed, no evidence was presented to show Defendants had any awareness even remotely similar to the awareness on which the <i>Youth Soccer</i> court relied in imposing a duty to perform background checks. The <i>Youth Soccer</i> court distinguished <i>Chaney v. Superior Court</i> (1995) 39 Cal.App.4th 152 (<i>Chaney</i>), <i>Romero v. Superior Court</i> (2001) 89 Cal.App.4th 1068 (<i>Romero</i>), <i>Margaret W., supra</i>, 139 Cal.App.4th 141, and <i>J.L., supra</i>, 177 Cal.App.4th 388, because those cases "involved criminal conduct by family members or guests that occurred in homes, and there was no evidence to indicate criminal conduct by these individuals was in any way foreseeable," while <i>Youth Soccer</i> "involved criminal conduct by a member of an organization that provided activities exclusively for children." (<i>Youth Soccer, supra</i>, 8 Cal.App.5th at p. 1135.) <i>Youth Soccer</i> further distinguished its circumstances from the circumstances presented in the foregoing cases: "More importantly, here, defendants were aware that sexual predators were drawn to their organization in order to exploit children and that there had been prior incidents of sexual abuse of children in their programs." (<i>Ibid.</i>) This court finds
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Chaney, Romero, Margaret W., and J.L. to be more analogous to the circumstances of this case involving a foster home, than the circumstances involving youth sports at issue in the *Youth Soccer* case.

Moreover, *Doe v. Los Angeles County Department of Children & Family Services* (2019) 37 Cal.App.5th 675, makes clear actual knowledge is the appropriate standard in the foster home context. (*Id.* at pp. 682-683.)

Here, Plaintiff asserts Defendants were first made aware of allegations of sexual abuse by Plaintiff's foster parent in 1971, when Plaintiff's foster brother, R.S., told his social worker (who was different than Plaintiff's social worker), "I feel really weird taking a shower with dad" and "it was yucky." (Response to Separate Statement, Fact Nos. 10, 22, 23, 27.) The ruling in the related case of *R.S. v. OCSSA, et. al.*, Orange County Superior Court 30-2021-01183062, however, noted that statement alone was not sufficient to create or establish actual knowledge that would make the harm foreseeable. The court takes judicial notice of its April 11, 2023 Minute Order granting summary judgment in the related *R.S.* matter. Plaintiff also asserts he "repeatedly reported" to his social work "Bad people are hurting me." (Response to Separate Statement, Fact Nos. 10, 22, 23, 27.) Plaintiff relies on his deposition, in which he was questioned about his Interrogatory response. Plaintiff was asked "Did you say anything else other than "Bad people are hurting me?" to which Plaintiff answered "I'm going to pretty much stick with those words. When I first told her, I was young." (Plaintiff's Deposition 121:22-25.) Finally, Plaintiff asserts his social worker was aware of his bedwetting, and that it is a common issue in children who have experienced sexual trauma, citing to the deposition of his social worker. (See Response to Separate Statement, Fact No. 14.) The deposition of Plaintiff's social worker indicates she was aware of the bedwetting, and it is "a pretty common issue for children who've experience trauma." (Deposition at 39: 20-25.) Further, Plaintiff's social worker testified she did not "consider it as a red flag based on the whole context of" Plaintiff's history. (Deposition at 43: 8-10.)

This presents the question whether these facts together constitute actual knowledge that would make conduct of Plaintiff's foster parent foreseeable. Ultimately, they do not. Plaintiff's foster brother made a single statement the year before Plaintiff was placed in the home to a different social worker. Plaintiff has offered only a vague assertion he told his social worker "Bad people are hurting me." There is no evidence Plaintiff ever elaborated or indicated the "bad people" were in his foster home. Undisputed Material Fact No. 16 states Plaintiff told his social worker "several times that he wanted to stay in [his foster parents'] home, wanted to be adopted by [his foster parents], and that [his foster family] felt like his real family."

The court acknowledges the declarations and evidence offered in opposition to the motion must be liberally construed and the moving party's evidence must be construed strictly when determining the existence of a trial issue of fact. (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.) Similarly, the court acknowledges it may not weigh the evidence in ruling on a summary judgment motion (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840), nor may it resolve questions of credibility (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064). We these standards in mind, the court nonetheless concludes the foregoing facts do not support actual knowledge that would make the conduct of Plaintiff's foster parent foreseeable. As such, Defendants had no legal duty to protect Plaintiff from the unforeseeable criminal conduct of his foster father.

Defendants also assert immunity under Government Code § 820.2, arguing that social workers are immune from claims arising from their placement of minors in foster care and decisions regarding whether a minor should remain or be removed from that placement because those are discretionary decisions judicially delegated to social workers. (See *Becerra v County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1462; *County of Los Angeles v. Superior Court (Terrell R.)* (2002) 102 Cal.App.4th 627, 643-44; *Thompson v. County of Alameda* (1980) 27 Cal.3d 741, 748-49; *Ronald S. v. County of San Diego* (1993) 16 Cal.App.4th

		887, 899; <i>Alicia T. v. County of Los Angeles</i> (1990) 222 Cal.App.3d. 869, 882-83.) Plaintiff points to <i>Elton v. County of Orange</i> (1970) 3 Cal.App.3d 1053, which held "Decisions made with respect to the maintenance, care or supervision of plaintiff, as a dependent child, or in connection with her placement in a particular home . . . do not, under the provisions of Government Code section 820.2, preclude judicial inquiry into whether negligence of public employees was involved." <i>Elton</i>, however, has been criticized as a "difficult decision" by the same court of appeal that decided it (<i>Ronald S., supra</i>, 16 Cal.App.4th at p. 898) and found distinguishable on many grounds (<i>ibid.</i>; <i>Becerra, supra</i>, 68 Cal.App.4th at p. 1464). The court agrees with the other cases. Moreover, this immunity challenge provides an additional ground for granting the motion, the other grounds discussed above are sufficient in and of themselves to support granting the motion. Based on the foregoing, the motion for summary judgment is GRANTED. Counsel for Defendants is ordered to give notice.
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14.		